

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE ALBERTO MARTINEZ REYNOSA,

Petitioner

VS.

JOSEFINA TOLAMA COBA,

Respondent

) Case Number: FDI-24-800540

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jose Alberto Martinez Reynosa (Husband) and Respondent Josefina Tolama Coba (Wife). There are no minor children subject to this proceeding.
- 2) On 11/13/24, Husband filed a Petition for Dissolution indicating the date of the marriage is 04/23/15 and the date of separation is 05/01/21 for a marriage of 5 years and 1 month.
- 3) On 12/23/24, Wife filed a Response and Request for Dissolution indicating the date of the marriage is 04/23/15 and date of separation is 12/04/23 for a marriage of 8 years and 7 months.
- 4) On 04/30/26, Wife filed a Request for Order seeking guideline temporary spousal support of \$2,442 a month. Wife indicates that Husband's makes \$7,392 in gross monthly income, pays \$4,588 in monthly expenses, and has \$2,600 in debts. Wife asserts these figures based on Husband's 03/22/25 Income and Expense Declaration. Wife states she is employed on an "on-call basis," so her work is not guaranteed by her employer, and on or about 12/18/25 she stopped accepting shifts due to ongoing health issues from a work-related injury sustained in 2021. Wife asserts Husband was the primary provider for the household during marriage and Wife was left

1 with substantial debt after separation. Wife attaches a proposed XSpouse calculation to her
2 Request for Order.

- 3 5) On 04/30/26, Wife filed an Income and Expense Declaration indicating that she makes \$0 in
4 gross monthly, has \$0 in real and personal property assets, pays \$1,633.39 in monthly debt
5 payments, pays \$4,187.39 in total monthly expense, and has \$2,554 of her monthly expenses paid
6 by others.
- 7 6) On 04/30/26, Wife filed a Statement of Support Calculations using Husband's income listed in
8 his 03/22/25 Income and Expense Declaration to determine guideline temporary monthly spousal
9 support of \$2,442.
- 10 7) On 05/07/26, Wife filed a Proof of Service indicating that Husband was served on 05/06/26 by
11 mail, which is timely service.
- 12 8) On 06/05/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order.
13 Husband asserts Wife has been self-supporting since separation. Husband indicates that Wife is
14 voluntarily not working and requests that the Court impute earnings to Wife as she provided no
15 documentary evidence of her disability. Husband asserts that Wife's earning capacity is at
16 minimum \$5,000 a month based on the hourly compensation of Wife's current job multiplied by
17 forty hours per week (\$29 x 40). Husband states that he sustained an injury while at work and has
18 been on disability since 10/2/25. Husband attaches a healthcare form showing he is on temporary
19 disability until 7/21/26. Husband requests that the Court issue a Gavron warning advising Wife of
20 her obligation to make a good-faith effort to become self-supporting.
- 21 9) On 06/05/26, Husband filed an Income and Expense Declaration indicating that he receives
22 \$5,609 in monthly private disability insurance, has \$1,500 in cash assets, has \$3,000 in personal
23 assets, and pays \$8,060 in total monthly expenses.
- 24 10) On 06/05/26, Husband filed a Statement of Support Calculations indicating that Wife's gross
25 monthly income is \$5,020.

26 **B. Findings and Order**

- 27 1) "Awards of temporary spousal support rest within the broad discretion of the trial court and may
28 be ordered in any amount subject only to the moving party's needs and the other party's ability to
29 pay." See *Marriage of Murray* (2002) 101 Cal.App.4th 581.

- 1 2) “A supported spouse’s need is an essential element in determining entitlement to support
2 independent of the other spouse’s ability to pay.” See *In re Marriage of Hoffmeister* (1984) 161
3 Cal.App.3d 1163, 1175.
- 4 3) The burden of proof as to both elements (need and ability to pay) rests on the party seeking
5 support.
- 6 4) Here, the Court finds Wife failed to sufficiently establish Husband’s ability to pay given that: (a)
7 Husband provided documentary evidence that he is on temporary disability until 7/21/26 from a
8 work-related injury sustained on 10/2/25; and (b) his income and Expense Declaration filed
9 6/5/26 shows his expenses exceed his monthly disability payments.
- 10 5) Based on the foregoing, Wife’s requests for temporary monthly spousal support is DENIED.
- 11 6) As the Court denied Wife’s request for temporary monthly spousal support, the Court finds
12 Husband’s requests that Wife be imputed income and issued a Gavron Warning are MOOT.
- 13 7) The Court will prepare the Findings and Order After Hearing.